

Chapter Title: SOVEREIGN (IR)RESPONSIBILITY

Book Title: Drone Enlightenment

Book Subtitle: The Colonial Roots of Remote Warfare

Book Author(s): PETER DEGABRIELE

Published by: University of Virginia Press. (2023)

Stable URL: <https://www.jstor.org/stable/jj.16552225.5>

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SOVEREIGN (IR)RESPONSIBILITY

IN THE MIDDLE OF 2012, a Tumblr account called *Texts from Hillary* appeared, featuring what one Twitter user called “disturbingly fawning” memes about the then secretary of state.¹ The memes capitalized on Clinton’s public image of wit and sassiness, presenting her as a no-nonsense liberal culture hero. The Tumblr page is still available and comes across as just as fawning as ever.² Not long after this, a Tumblr account called *Texts from Drone* appeared. Using many of the images from the Hillary memes, this account was anything but fawning. It presented Clinton, Joe Biden, and then President Obama in a series of text conversations with a Predator drone as the drone went about its murderous, destructive business. This Tumblr is no longer available. In one of the memes, President Obama leans casually back on a couch and texts “What’s up?” to the drone (named D-Ron). D-Ron replies, “Anyone ‘due’ for some ‘process’?” This simple exchange crystalizes some of the most important themes in the problematic of drone warfare.

The drone, and not Obama, is the one who suggests or encourages Obama to send it on a strike, as if it is technology rather than humans who are the agents of drone warfare. Obama’s relaxed posture (he is in shirtsleeves) also indicates the seeming ease with which the United States



Memes from the Tumblr page *Texts from Drone* (clockwise from top left): April 15, 2012; April 16, 2012; April 17, 2012, submitted by @ohtarzie; April 17, 2012

is able to engage in deadly conflict in foreign territories. These are decisions taken without any public debate and with very little hand-wringing. Indeed, this simplified scene is a reimagining of Obama's Terror Tuesday meetings, in which the president would meet with representatives of various security agencies to mull over their lists of terror suspects and decide

who on the lists could be assassinated. The meme replaces the official image of a morally serious group of adults working to maintain national security with a casual Obama being prompted to order killings by the machine itself. Moreover, D-Ron seems acutely aware of the fact that drone warfare makes a mockery of the liberal norms of the US Constitution. Placing *due process* in scare quotes is a succinct way of putting Attorney General Eric Holder's specious and disingenuous legal argument that American citizens targeted by drones are entitled to "due process" but not "judicial process."³ As this meme indicates, a due process, but not a judicial one, could be a casual text conversation in which a death is decided upon by a president in shirtsleeves leaning back on a couch. In this sense, the meme demonstrates the problematics of responsibility and agency, the increased ease of making war, and the hollowing out of the norms of law in favor of an undefined and potentially casual decision-making process.

While this series of memes is hardly the most potent of the various forms of anti-drone protest in the United States, it is interesting for a number of reasons. First, it registers in a quite precise way the anxiety about responsibility when it comes to drone strikes. By giving the drone a life and a personality of its own, these memes suggest a killing machine out of the control of its masters. It gives us the image of the sovereign power over life and death being exercised mechanically, without competent oversight and with considerable pleasure. Drone strikes, in these memes, seem barely controlled by the norms of intentional agency, with overenthusiasm, joy, accident, and miscommunication taking the place of considered, rational decision making. Furthermore, Obama and Clinton are the main human protagonists, and even when Obama does not appear, it is clear that the drone is acting with (or without) regard to his orders. In this sense, the memes produce a zone in which Obama's responsibility for drone strikes is portrayed as a fundamental irresponsibility, not so much in the sense that he acts without due consideration but in the sense that even when he does act with due consideration the president is not responsible—not accountable—for his actions. The drone in the memes takes responsibility from its masters not because of what it presents at face value, that is, a terminator-like nightmare scenario in which it is self-aware and killing its own targets. Instead, this nightmare scenario is merely a screen for the more mundane bad dream represented by drone warfare in which the

sovereign decision over life and death occurs fundamentally outside a zone of responsibility.

Indeed, the threat represented by drones is neither technological nor ethical, but political.⁴ To properly understand this, it is worth looking backward to one of the early Enlightenment's strongest statements of the theory of sovereignty, that of Thomas Hobbes. Hobbes's *Leviathan* outlines a theory of sovereignty in which an indivisible sovereign power founds and guarantees the field of the political. This sovereign power is at once the ultimate judge in all causes and the ultimate bearer of injuries. As such, the sovereign is also the locus of responsibility, the one who is held responsible for any moral decision. However, while the sovereign may be the locus of responsibility, it remains unaccountable to any person. As Hobbes puts it, it would be repugnant to any system of sovereignty to hold a sovereign accountable to any law, as that would merely be to set up another sovereignty above that of the sovereign. Or as Derrida puts it, any pure sovereignty would have to be fundamentally irresponsible, deaf to the call of responsibility, because it can never be held accountable without losing something of sovereignty. To subject sovereignty to "rules, to a code of law" undermines its indivisibility because this is "to divide it, to subject it to partitioning, to participation, to being shared."⁵ This is one of the paradoxes of drone warfare that this chapter explores in order to demonstrate the new form of political technology that it represents.

The drone is a political technology because drone warfare functions through the enmeshing of political processes and the technological potentialities of the killer drones. Drones carry out a war that does not conform to the norms of democratic accountability but produces a direct link between the means of violence and a political power that is sovereign because unrestrained, unaccountable, and fundamentally (ir)responsible. The problems drone warfare poses are not solvable or fully thinkable from within the realm of technics, nor from a narrow perspective that would have us think about, for instance, the ethics of drone warfare. Better technology, or better guidelines for the use of this technology, will not make drone warfare just, humane, or legitimate. Instead, it is necessary to think how drone warfare is integrated into a political system that is designed to reduce moral and political accountability and that operates within specifically neoimperialist contexts. The political technology of the drone is

the system that allows for, normalizes, and even legitimizes remote-control killing while at the same time making it seem like the best, most efficient, even most moral way of entering into supposedly necessary armed conflicts. To counter this, we need to think not from within the bounds of the technology only but from a perspective that includes the way that technology is integrated into a political system and a practice of war and sovereignty. This perspective must recognize that drone warfare is specifically political because it claims a sovereign right over life and death that bypasses many of the norms that insulate the subject from this unconditioned sovereign violence.

Both in Hobbes's philosophy and in the phenomenon of drone warfare this political problem must be directly related to questions of moral philosophy. In this context, another aspect of Hobbes's thought that is incredibly pertinent to the phenomenon of drone warfare is his moral determinism. Put briefly, this is Hobbes's contention that our sense that our actions are motivated by a self-conscious intentionality is merely wrong. We have no free will to choose but are instead motivated by a network of external causes (for this reason Hobbes's position is sometimes called externalist) that impel us to direct ourselves in certain ways. On Hobbes's account, humans are more like automatons or rats in mazes, pushed about by things external to us, than intentional moral agents. Just as the problem of sovereignty needs to be critically articulated with the phenomenon of the drone, this form of moral determinism seems to perfectly describe a world in which no one seems to have quite made (and would thus be morally responsible for) the intentional decision to kill an anonymous person by remote control half a world away. While recent criticism has sometimes embraced this kind of moral determinism as a way of exiting the liberal politics of responsibility and releasing the hold the form of the liberal subject has on moral thought, it is essential that this form of deterministic or externalist morality is carefully articulated (as it sometimes is not) with Hobbes's theory of sovereignty. Hobbes's deterministic moral philosophy is inseparable from his theory of an unaccountable and (ir)responsible sovereign power. A second problem this chapter explores, then, is how the phenomenon of the drone allows us to see the link between moral and political philosophy, how the problem of responsibility must always be thought as a problem of sovereignty. All these problems come up in the *Texts from Drone* series of memes.

While this chapter explores the link between sovereignty (or the realm of the political) and moral philosophy with regard to the philosophies of both Hobbes and John Locke, it is Hobbes who is the central and crucial figure here. More than any other political philosopher, Hobbes argued for the necessity of a sovereign exception to the rule of law. This kind of claim has, since the very moment Hobbes pronounced it, been anathema to more liberal accounts of the political. Hobbes's account of a sovereign who must maintain himself above the laws, however, has consistently resurfaced as a bugbear for liberal accounts of political organization. One of the strongest instances of this liberal ideology is the belief in the balance of powers between the judiciary, Congress, and the executive supposedly enshrined in the US Constitution. Each branch of government is supposed to be a check on the others, introducing accountability and responsibility throughout the system. If, in some ways, the creation of this system was Enlightenment liberalism's great rebuke to Hobbes, the drone is his revenge.

Drone warfare is a scandal to any claim that the powers of the executive are limited by either the judicial branch or Congress. Decisions on drone strikes in territories with which the United States is not at war, and sometimes against US citizens, are taken without the knowledge of Congress and at the behest of a president who is not and cannot be held responsible for extrajudicial assassinations. In this sense, the return of an exceptional and (ir)responsible sovereign right in the midst of a liberal constitution shows the persistence of Hobbesian political philosophy. Even more importantly, however, the liberal concept of a morality based on the free moral choice of the individual, which is witheringly critiqued by Hobbes's moral determinism, is also, simultaneously with liberal political theory, eviscerated by the phenomenon of drone warfare. The last bastion of accountability in drone warfare seems to be nothing more than the moral conscience of the president in his shirtsleeves, as if somehow this private morality would be adequate to the political sphere for which he is supposed to be responsible. Drone warfare, we will see, shows precisely that this form of private, individual liberal morality is never adequate to the political, that liberal moral philosophy and liberal political theory are both paper tigers in the face of remote killing. Hobbes is important, then, as it is his version of the Enlightenment that emerges triumphant in the world of drone warfare, and any attempt to critique his account of sovereignty must begin from principles other than a starkly inadequate liberalism.

TEXTS FROM DRONE

Texts from Drone demonstrates the inability of liberal morality or a liberal political organization to work against the neocolonialist form of remote killing that is drone warfare. Indeed, these memes show that drone warfare is, precisely, a creature of liberalism. *Texts from Drone* demonstrates this in an interesting way. On the one hand, the memes outline the horror of a world in which a text message can unleash the full violence of sovereign power on a territory and its subjects. These subjects, indeed, are not granted even the minimal autonomy necessary to warrant a standard, diplomatic declaration of war or the procedures of criminal justice. On the other hand, and at the same time, the memes endow the drone who (or is it *that*?) performs these acts of sovereign violence with an all-too-human agency, including a pleasure in killing and a will that is not quite controllable by its texting masters. For instance, in one meme the drone replies to a text from Obama that inquires, “what’chu doin?” by saying, “nuttin much lmao jus blowin up kids for America.” In another, the drone is pictured flying through the air singing the lyrics to Far East Movement’s song “Fly like a G6,” while Clinton texts, “D-ron, are you even listening to me?” In both these examples, the drone has its own agency, and those who theoretically control it are merely playing catch-up. Significantly, though, the meme is not concerned with how the drone might escape the control of those who are actually guiding it (namely, the drone pilots). It is concerned instead with the role of those who enact and carry out drone policy. The worry, here, is not that weapons technology will overtake human control, that intelligent machines will challenge human autonomy. This is a problem that some drone activists are dealing with, especially when it comes to the idea that a machine may decide who to kill and when.⁶ The concern is instead about the political technology of drone warfare, about how the technical capabilities of the drone enter into systems of sovereignty.

Texts from Drone makes two related political statements. First, it critiques the violence of the neoliberal state. Second, it destroys the fantasy of there being a classical liberal subject who could be held responsible for the actions of neocolonial violence the memes represent. Giving the drone in the meme agency both enacts and critiques this fantasy, as it fulfils the wish to have someone, even a sentient machine, who would be responsible for the strikes. The series of memes involves a radical critique of a US

foreign policy in which people in certain territories are classed as “unprivileged enemy belligerents” and in which the mode of dealing with them is either indefinite detention or drone strike. Indeed, one meme has the drone complaining to Clinton about the 2012 National Defense Authorization Act (NDAA), which included provisions for indefinite detention. It texts, “Hey Hill, wtf is w this NDAA BS? Indefinite *detention*?” She replies, “CHILL, D-RON. There R enuf unprivileged enemy belligerents 2 go arnd.” Another has Obama texting the drone, “yo I gotta be the smiley face for empire can u handle this?” The drone replies “HYFR.” This latter meme especially makes the point that drone warfare is a technology specific to the liberal or neoliberal state. This abandonment of agency and responsibility to political and military technology is not the nightmare of totalitarianism but the reality of liberalism.

This leftist antiliberal claim is amplified by the memes’ parodic attempt to create the fantasy of a responsible subject. *Texts from Drone* shows the useless desperation in trying to maintain the fiction of subjective agency and responsibility in a world in which the mechanization and automation of killing seems to have evacuated the ideology of the subject that makes the liberal state possible. In other words, it is precisely the liberal subject, who is in some sense defined by their accountability for their own actions, that is threatened by the political technology of the drone. It is in the name of this responsibility or accountability that *Texts from Drone* seems to critique the policy and practice of drone bombing, at the same time that the series of memes demonstrates that it is precisely liberalism (and its fantasy of a responsible subject) that is the problem here. This is the other reason why it is not really Clinton and Obama who seem in control in the memes, but the drone itself. The fantasy that is both parodically enacted and undone here is to make the drone a responsible agent, to maintain the fiction of personal responsibility in a situation in which the limits of agency are stretched so far that it no longer seems possible to know whom to blame should a drone (or its pilot) confess, as happens in one of the memes, to “accidentally” having “collateralised a couple of tweens oops lmao.”

Indeed, the concept of collateral damage is designed specifically to blur the line between accident and intention. Giorgio Agamben has traced the concept of collateral damage as far back as the ancient world and shown it to be operative in medieval distinctions between specific and general

providence. Modern governmentality, he argues, derives from these medieval theological discussions, and its primary procedure is the management and calculation of collateral damages. He writes that “*every act of government aims at a primary target, yet, precisely for this reason, it can lead to ‘collateral damages’ which can be expected or unexpected in their specifics, but are in any case taken for granted.*” For Agamben, then, “*the computation of collateral effects is . . . an inherent part of the logic of government.*”⁷ The paradigm of the act of government in its pure form, he argues, is “the collateral effect,” and the act of government “represents an area of undecidability between what is calculated and what is not wanted.”⁸ *Collateral damage* thus names this zone of undecidability between the calculated and the not wanted. It is something that can not quite be called unwanted because any calculated act of government will produce it. It is within the calculated results of any act, but outside the direct intention of the act.

While Agamben’s genealogy is typically long, the more recent history of collateral damage is directly related to modern aerial warfare. It does take advantage, however, of this same zone of undecidability between calculation and intention that is described by Agamben. The phrase seems to have entered common discourse with specific relation to aerial bombing. While it was certainly current before the late 1990s, public discussion of the NATO bombings of Serbia saw consistent reference to *collateral damage*, so much so that a German linguistic association called it the ugliest word of the year 1999.⁹ Collateral damage is a particularly insidious concept precisely because, as Eyal Weizman argues, following Agamben’s analysis of the philosophical and theological background to this concept, collateral effects in military contexts “are structural rather than accidental.”¹⁰ Bruce Cronin puts this slightly differently when he says that “collateral damage becomes a calculated strategy” of Western militaries.¹¹ Indeed, Cronin argues that collateral damage is “an inevitable outcome” of what he calls the “Western method of warfare.”¹² Collateral damage invents a line between the intended and the foreseeable consequences of an action that allows those ordering aerial bombardments to claim that certain damage in a given strike is intentional (destroying a military base), while other damage (destroying the school next door) is only foreseeable. That the latter damage is foreseeable but not intentional makes the strike fall within the legal bounds of warfare. Cronin argues that Western militaries use collateral

damage to take advantage of a gray area in the law of war in order to strike a wider range of targets, and this gray area is produced precisely by the distinction between intended and foreseeable consequences.¹³ Neta Crawford, in a similar vein, writes that “many episodes of collateral damage are foreseeable, foreseen, and preventable, albeit strictly legal.”¹⁴ One feature of the distinction between the foreseeable and the intended is its attempt to preserve a certain language of morality, that of intentionality. Beyond its attempt to make more strikes fall within the laws of war, this concept also makes these strikes seem within the bounds of conventional morality because it maintains a purity of intention behind a strike despite the messy consequences that follow it.

The messiness of these consequences is nicely captured by the name of the computer program used by the military to calculate risk to civilian lives in any particular air-strike: BugSplat.¹⁵ While this terminology has been phased out, it appears that some drone pilots still refer to the zone of destruction around an intended target as bugsplat. It is not that people standing in that zone are intentionally killed (in the sense that the target of a missile is), but neither is any harm that comes to them accidental. It is part of the structural calculation of a strike. For Cronin, this method of warfare (which is characteristic of air warfare and not restricted to that carried out by drone), while legal, demonstrates “a reckless disregard for the foreseeable consequences of one’s actions.”¹⁶ A similar kind of calculus was practiced during the Iraq invasion, when the military came up with a complex calculation of how many civilians might be killed in any particular airstrike. If it was considered that fewer than thirty would be killed, the strike could proceed without any top-level approval. More than that, and it would need to be approved by the secretary of defense.¹⁷ This moral calculus makes civilian casualties part of an intentional moral calculation and yet strips the value of each individual civilian life as long as the total number of lives does not exceed twenty-nine.

This kind of moral calculus uses the language of a liberal moral intentionality, but in such a way that it undercuts any possible moral agency or responsibility. Narrowing intentionality to include only directly intended harm absolves in advance those who make decisions about targeting from any responsibility for the lives taken in the bugsplat zone, the zone between intention and accident.¹⁸ While this kind of moral calculus is also

present in conventional warfare, in drone warfare it is the central mode of operation. Every strike is at once a targeted and specific strategic act (which the military propagandizes as surgically precise) and a controlled accident, or bugsplat. Drone warfare is thus represented as the most responsible form of warfare, in which everything can be controlled by an intentional agent and their supplemental computer program. However, it is so only because the blurring between accident and intention in something like bugsplat makes the lives taken or injuries inflicted in the zone between accident and intention not subject to responsibility. Bugsplat (and collateral damage more generally) defines a zone in which there are lives and bodies for which one does not have to be responsible, and it is for this reason that the drone can appear as or be propagandized as morally responsible. While conforming to the traditional liberal language of moral intentionality, the structure of drone warfare works to remove moral responsibility.¹⁹

In a different way, the US government's official policy of counting all males of military age as enemy combatants, unless they are posthumously proven to be civilians, means that the line between accidentally killed civilians and deliberately killed enemy combatants is even harder to police. This is especially the case, as Woods demonstrates, when American military personnel interpret the category of military-aged male quite differently, with some operatives believing that children as young as seven could be classified as adolescents, and thus as "military aged males."²⁰ From collateral damage to the fragile line between innocent civilian and enemy combatant, then, the line between a morally accountable, intentional act of killing and an accident is increasingly fuzzy.

In this context, *Texts from Drone* demonstrates how comforting it would be to return to an idea of personal agency in the age of the machine. It fulfils a wish to be able to hold someone or something responsible for an action that seems to be spread out in a network of causes, human and mechanical, that makes agency difficult to pinpoint. This kind of insulation against responsibility is something that most troubles those writers and activists who have been protesting the use of drones. Writers like Medea Benjamin and Gregoire Chamayou describe scenarios in which a complex chain of communications, running through a technological interface that is not always entirely reliable, makes it difficult to pinpoint who may have made particular decisions, and with what information.²¹ Chamayou argues

that once robots are considered agents, there can be “no simple attribution of responsibility”; there is instead a “headless network of multiple agents” in which responsibility “tends to become diluted.” For instance, the “kill chain,” the series of people responsible for authorizing and using deadly force, includes pilots, data analysts, mission commanders, ground troops, generals, and the president, plus all the technological interfaces necessary to keep these parties in communication with one another. What might have been assessed as a war crime, argues Chamayou, gets reassessed as a “military-industrial accident.”²²

This overload of information processed through technology was central to an investigation into a drone strike in Afghanistan that mistakenly killed a caravan of civilians. A 2011 report in the *Los Angeles Times* made this one of the few cases concerning the deaths of civilians in drone strikes of which the American public was made aware. The incident involved drone pilots misrecognizing children as adults and benign objects as weapons. The response of the US Army and Air Force investigations was, in part, to recognize that “an abundance of surveillance information can lead to misplaced confidence in the ability to tell friend from foe. ‘Technology can occasionally give you a false sense of security that you can see everything, that you can hear everything, that you know everything,’ said Air Force Major Gen. James O. Poss, who oversaw the Air Force investigation. ‘I really do think we have learned from this.’”²³ As Hugh Gusterson notes, Poss’s phrasing “suggests that technology itself might be to blame.”²⁴ In this sense, it is the technology that inhibits decision making that is the problem, not the people who make the decisions. Built into the practice of drone strikes, then, is a diffusion of responsibility and accountability, so that the idea of there being an intentional moral agent in charge of the drones is as distant as if the drones were truly autonomous. There are so many agencies in the drone network that there is no intentional moral agent.

One can see the parodic power of *Texts from Drone*’s personification of the drone and its granting it the kind of (im)moral agency that is structurally lacking in the procedural technology of drone strikes. This personification is, of course, the joke of the memes, and their insistent claim is that it is the drones’ masters (Obama and Clinton) who need to be held responsible for its actions. What I want to explore in the rest of this chapter is the paradox that requiring of an unregulated sovereign power the norms of liberal

responsibility leads us to the same impasse as does the diffusion of responsibility in the procedure and technological matrix of drone strikes. On the one hand, in concentrating responsibility in a president whose powers are unchecked in terms of the authorization of lethal drone strikes, we enter a zone in which responsibility and irresponsibility become indistinguishable and in which we reach the functional limit of the responsible liberal subject and the liberal concept of responsibility. On the other hand, any attempt to think of responsibility and agency as diffused throughout a network rather than concentrated in individual actors ignores the problem of sovereignty and leaves sovereign power unaccountable and (ir)responsible. This is, as I demonstrate later in this chapter, the case with the work of Bruno Latour and others who work with actor network theory (ANT). The drone is thus a blind spot that exists at the juncture of the moral and the political.

HOBBS AND LOCKE ON RESPONSIBILITY

How modern state sovereignty relates to the norms of liberal moral responsibility is one of the central questions of Enlightenment moral and political philosophers. An illuminating way to approach this problem is by comparing the moral philosophies of Hobbes and John Locke. To see why this is a productive move, and how these thinkers can help us understand the world of the drone, it is worth beginning at Locke's famous definition of personal identity in *An Essay concerning Human Understanding*. There Locke aims to define how personal identity, or the self, can persist through changes in material substance. To do so, Locke annexes the idea of the person to a consciousness of actions performed. We are the same person as the one who performed actions yesterday because today we are conscious of having performed those actions. What is remarkable about Locke's analysis of personal identity is the extent to which it is juridical. The person, he remarks, "is a Forensick Term appropriating Actions and their Merit; and so belongs only to intelligent Agents capable of a Law."²⁵ A person, as distinct from the idea of a man or a human being, is a legal entity, and, Locke insists, it is the person who is always accountable for their actions and susceptible to reward and punishment. The person, then, is a legal identity based on

a present self-consciousness of past actions. The same person is the same person because they remember and feel what they did as their own actions and can be held accountable for them. Even at this point we can see a tension between this juridical concept of the person and drone warfare. One characteristic of the action of the drone is that no one feels quite conscious of having performed it. As Chamayou puts it, for the drone pilot, “the filtered nature of perception, the figurative reduction of the enemy [to a blur without a face], the non-reciprocity of the fields of perception [the enemy does not see you] . . . are all factors that . . . produce a strong ‘moral buffering’ effect.”²⁶ Thus, one thing the technology of the drone introduces is a gap between the commission of an action and the moral consciousness of having committed it.²⁷

Locke, indeed, is keen to reconcile his claim that the present consciousness of past actions is what defines a person with juridical practice. He takes as an example those strange cases in which someone is punished for something they may not have been conscious of doing, despite others’ insisting that they had. This would be the case if one committed a crime while too drunk to remember, or while sleepwalking. Locke argues that such cases are perfectly consistent with his annexation of consciousness of past actions to personhood because the laws punish these actions “with a Justice suitable to their way of Knowledge” (344). The law can prove the fact that a man did something, but it can never prove or disprove with certainty whether the person before the law is conscious of the fact. For Locke, our very sense of self is entirely wrapped up with our accountability, even legal accountability, for our actions. The self is juridical.

For Locke, that the self must be accountable for its actions makes it subject to a system of reward or punishment, or the application of pleasure and pain. It is important to Locke’s argument that a person is conscious of, and thus “concerned and accountable” for, any actions that may be attributed to them because it is precisely these actions that may impact a person’s happiness or misery (346). To have a self, he argues, is to desire happiness for that self. Locke thus deems it essential that we are only to be held accountable for actions of which we are conscious, for “to receive Pleasure or Pain; *i.e.* Reward or Punishment, on the account of [a past action we had no consciousness of] is all one, as to be made happy or miserable in its first being, without any demerit at all” (346–47). Locke is insistent

that our happiness or unhappiness be related to our actions, such that we are rewarded for or pleased by good actions and punished for and hurt by bad ones. While this seems, in many ways, an obvious and conventional moral statement linking our actions to consequences for our selves, it in fact makes a particular claim. Subjects, Locke implies, have a responsibility for their own actions, but this responsibility is precisely limited by their consciousness of having committed them. We need to be held responsible, but only insofar as we are conscious of what we have done and, more interestingly, of the effects (good or bad) of what we have done. We cannot be held responsible for accidental or unforeseeable consequences of our actions, but only for ones we could or should have been conscious of. This is, as Sandra Macpherson has shown, a theory of limited responsibility, or more legalistically, limited liability.²⁸

If this is the basis of liberal moral subjectivity, and of the liberal juridical subject, it is not the only position to come out of the late seventeenth century. Hobbes's account of moral responsibility differs starkly from Locke's, and it places emphasis not on the self-conscious subject but on the chain of material causes that produces any action. Hobbes's subjects are thus enmeshed in a chain of cause and effect. In this system, punishment and reward, rather than being doled out to self-conscious subjects who are intentional actors, are used as links in the chain of cause and effect to alter the desires and aversions of embodied actors. Hobbes thus provides an alternative to the liberal concept of agency by producing a system in which intention is not the center of a chain of cause and effect. This kind of reading of cause and effect has been used by theorists such as Bruno Latour and Katherine Hayles to discuss the ways in which nonhuman actors can be agents in and responsible for actions. While Hayles and Latour either ignore or disavow the Hobbesian provenance of this kind of approach to moral causality, in this section I demonstrate the necessity of linking Hobbes's deterministic and mechanistic moral philosophy with his political philosophy.

As Jonathan Kramnick has demonstrated, following other readers of Hobbes, Hobbes holds to an externalist or determinist account of cause and consequence.²⁹ This is to say, he argues that our own will or intention is not independent of external causes but rather entirely dependent upon them. We have no free will. Indeed, for Hobbes freedom and will

form two different categories, and to yoke them together is simply a category mistake. Freedom refers only to our capacity to physically do that which we attempt to do, not to our intentions or desires, which are neither free nor unfree. If this seems abstract, it becomes clearer when we consider how Hobbes sets out systems of reward and punishment. Hobbes writes that “the use of Lawes . . . is not to bind the people from all voluntary actions; but to direct and keep them in such a motion, as not to hurt themselves by their own impetuous desires, rashnesse, or indiscretion; as Hedges are set, not to stop Travellers, but to keep them in the way.”³⁰ The laws do not bear on our will in the sense that they ask us to restrain our will to do harmful things. Instead, they set up an external system of rewards and punishments that guides our desires and passions in unharmed or beneficial directions. As Leopold Damrosch puts it, “Punitive laws can operate among the causes that influence [subjects] to abstain from crime.”³¹ The certain punishments set out by the law—and they must be both swift and certain—direct our passions away from the actions that would incur them.

An example might clarify this. For Hobbes, unlike other conventional moralists of his own time (or ours), it is not that we need to suppress a want to do the wrong thing, such as stealing. Conventional moralists might formulate a series of reasons why stealing is wrong: it deprives others of the fruits of their labor; it destroys the foundations of property and civil society. For these reasons, we should stifle our desire to steal. Hobbes instead wants to redirect our passions so that the want to steal is replaced by a desire not to. For instance, laws make it not worth the risk because stealing will lead to a punishment worse than what we would gain by it. This is why punishment must be swift and certain. If we think we can get away with it, or if the punishment is not directly tied to the crime, space opens up for the desire to steal. For Hobbes, people are like those rats in mazes who don’t eat the food because they will get shocked, or who find their way out of the maze because bumping into the walls is painful or annoying.

Hobbes thus thinks of people as perpetually in motion, and the laws as so many external causes (to be joined with other external causes, as well as with internal causes like our affections and passions) that guide our motions.³² The consciousness of the subject is thus not central to reward and punishment but merely one link in a chain of causes that will propel

our bodies toward one action or another. For this reason, Hobbes says, every subject “ought by mediation of the Law, to rectifie the irregularity of his Passions continually” (210). The law thus guides the passions by changing the stakes of every action, making it more dangerous to murder an enemy than to let them live. Subjects, in the Hobbesian system, are punished (or sometimes rewarded) not on account of their durational self-consciousness but because they are moving bodies who participate in a long chain of cause and effect.

The relation of cause and effect in Hobbes is a diffuse net. Laws (and various other things external to us) cause our passions, which guide or determine our actions, which produce other causes and consequences both for us and for the world at large. If we are to trace from effect back to cause in this system, we do not stop at the mind or consciousness of a person, but look further back at what caused a person to have a certain consciousness or state of mind. As Kramnick argues, “Hobbes . . . elaborates a concept of cause that binds atoms to thoughts to persons to kings to God. On this view, actions don’t so much begin with agents as fall backwards along a continuous web.”³³ This produces a deterministic universe in which human intentions are largely irrelevant. As Damrosch puts it, “Once the chain of causation has been set underway . . . it must continue to unroll with implacable efficiency.” Conscious subjects are no longer the site of agency or responsibility, and it is bodies in motion, rather than persons, that are subject to both reward and punishment. To trace cause and effect is to say that everyone acts “under the influence of causes, and so on in infinite regress.”³⁴

In some ways, this account of responsibility seems perfectly apt to deal with the kind of mechanistic warfare carried out by drones. Hayles argues that we need a concept of responsibility that removes the emphasis from the free will of human subjects and locates agency and responsibility instead in a network of human, mechanical, and social processes. In doing so, Hayles, like other theorists of technology, follows Latour’s concept of actor network theory, which argues for a distribution of agency that includes both human and nonhuman elements. Hayles argues that technical artifacts like seatbelts, hydraulic door closers, or Fitbits can “encourage moral behavior.”³⁵ Like the laws for Hobbes, these external things produce moral behavior rather than an internal moral intention. The chain of causes that guides human behavior is no longer centered in a durational

self-consciousness of the Lockean liberal model but is instead spread out in a diffuse network in which things and humans form part of a single chain of cause and effect.

It is worth pausing for a moment to consider how actor network theory, as a significant new manner of thinking about cause, effect, and responsibility, relates to the kind of theory of sovereignty found in Hobbes. I want to emphasize the importance of returning to Hobbes as a way of understanding more fully than is possible through ANT the importance of the concept of sovereignty to sociological models of causality. On the one hand, it is relatively clear that Hobbes's externalism is a clear ancestor for a form of thought such as ANT, which locates agency in a network of human, nonhuman, natural, and technological causes that are not governed by an intentional agent. However, Latour also describes ANT as quite distinctly different from the kind of system of sovereignty found in Hobbes. Indeed, Latour remarks in *Reassembling the Social* (a book designed as an introduction to the already existing practice of ANT) that "as long as we detect behind the collective the shadow of the Leviathan, no science of the social can move forward."³⁶ For Latour, this is because the collective, what functions as a network, has to be able to assemble and reassemble itself without being in thrall to a master association such as that of Hobbes's Leviathan. Latour argues that networks are both more supple and less anthropological than the kind of association imagined in Hobbes's model of the Leviathan. Importantly, Latour imagines networks as involving not merely people but also other animate and inanimate things put together in a series of more or less stable associations. Thus his work seems a useful entry point for a discussion about the long chain of cause, effect, and responsibility involved in drone warfare. He sees Hobbes, on the other hand, as theorizing a system of association based on the contract or promise between people and held together by a commitment to that promise. However, precisely because, as I have been arguing, the phenomenon of the drone is not merely a technical technology (or even a social one) but primarily a political one, it would be overhasty to discard Hobbes's discussion of sovereignty.

The importance of the particular kind of relation that is sovereign power becomes clear in Michel Callon and Latour's discussion of Hobbes in an early essay on actor network theory. In "Unscrewing the Big Leviathan" Callon and Latour argue for a form of social relation, or association, that

would not require the kind of primary and originary political contract imagined by Hobbes. However, the terms in which they discuss Hobbes can be misleading. They write, for instance, that in his discussion of the formation of the political bond “Hobbes omits to say that no promise, however solemn, could frighten the contracting parties enough to force them to obey. He omits to say that what makes the sovereign formidable and the contract solemn are the palace from which he speaks, the well-equipped armies that surround him, the scribes and recording equipment that serve him.”³⁷ Close readers of Hobbes would surely find this hard to swallow. In speaking of the bonds created by promises, indeed, Hobbes writes in *Leviathan* that “bonds . . . have their strength not from their own nature, (for nothing is more easily broken than a mans word,) but from Feare of some evil consequence upon the same” (93). Furthermore, the primary fear that holds men to their promises is precisely the fear of the force, power, or violence of the sovereign. Callon and Latour represent this as his palace and his armies, for Hobbes its metonym is simply the sword. In this sense, Callon and Latour see in Hobbes an anthropological investment in the word or language that simplifies his theory. They later write that contracting for Hobbes is “an exchange of words during a period of universal warfare.”³⁸ They try to rewrite his scenario as one involving a broader network including military and information technology (the armies and recording equipment). It is certainly true that the technology of sovereignty is a more expansive network than that involved in a verbal promise. However, this is already true in Hobbes, for whom the sword, or arms in general, is vital.

Furthermore, in broadening the scope of the political network, Callon and Latour also miss the specificity of the sovereign relation and its claim to a power over life and death. This becomes clear later in the article when they argue that in any given sociological situation there “is not just *one* Leviathan but many, interlocked one into another like chimera, each claiming to represent the reality of all, the programme of the whole” (295, italics in original). This description works well enough to describe the kind of sociological entities Callon and Latour are interested in. In this article their examples are Electricity of France, or EDF, which wanted to create a future of electric cars, and Renault, whose aim was to undermine confidence in this future. For Callon and Latour, both these entities are Leviathans who wish to make the world make sense according to their own paradigms, and

to do so, both create scientific, economic, and technological networks to make their vision seem like a reality in which various actors (human and nonhuman) are caught up.

For Hobbes, however, the Leviathan is not just any kind of relation (or association) but a specifically sovereign one, which is to say primarily a political and not a sociological relation. This difference is important, especially in the context of drones, which are not merely a technology mixed with various social elements but a specifically political technology. While Callon and Latour argue that all forms of associations between all kinds of human and nonhuman actors can create different and competing Leviathans, the Hobbesian system differs because it makes one form of association indivisible. This is the sovereign relation between force and right. Sovereignty treats, in Blaise Pascal's terms, of the association of what is strong and what is just. Sovereignty does not simply associate any two things together but specifically claims a relation between force and justice and, with it, a right over life and death. The question is not whether networks are provisional associations between different sociological materials (human and nonhuman) or a result of an anthropological, linguistic, and unbreakable contract made between men. The question is what political relation, what power over life and death, and what link between force and justice underly any sociological network. This returns us to the problem of responsibility.

RESPONSIBILITY AND DRONES

At first blush, it would seem that by removing the conscious and intentional subject as the primary node of responsibility, it is possible that accounts of action and agency such as that of ANT would allow us to rethink responsibility in the case of drones. Machines themselves could be held responsible for harm, made forfeit, as things were in the old legal form of deodand. As Sandra Macpherson explains, under deodand even objects can be held responsible for harm. She cites examples of deodand law in which, for instance, a horse that throws and kills its rider is "forfeit to the king."³⁹ Responsibility here is radically removed from human subjects. Failing a return to deodand law, we could trace modes of responsibility

along a chain of agency without worrying about whether there was a conscious intention to harm or to act outside the law. The attraction of such a system of moral causality would be to counter the political technology of the drone in which the kill chain includes so many parts, human and machine, that it is difficult to assign fault or responsibility to any one part of the chain. However, just as ANT leaves aside the specificity of the sovereign association between force and justice, such an approach to drones would pay insufficient attention to how drones are articulated with this particular structure of sovereign power. Even mechanistic and externalist accounts of agency and responsibility are enmeshed in a web organized and guaranteed by sovereign power, a web that claims a relation between force and justice and a right over life and death. To ignore or dismiss this aspect of drone warfare is to miss its peculiar and frightening political technology.

This is where the Hobbesian genealogy of this form of thought becomes important. Despite Callon and Latour's attempt to distinguish ANT from Hobbes, it is precisely in his work that the idea of a network of cause and effect ungoverned by a human moral agent is promulgated. However, for Hobbes this is only possible because of the primacy of the political, sovereign relation. Hobbes demonstrates that any network is only possible through the primary construction of a political field and the production of an exceptional sovereign power that guarantees all other associations. The first association is between force and right. While Callon and Latour see the world, even after the Leviathan, as a continuing war of all against all in which various networks compete with one another, this is already a derived and watered-down version of the Hobbesian war of all against all in which no network, no association at all, is possible without the previous establishment of an indivisible sovereign power. The sovereign produces the coherent field in which various networks compete with one another when the people contract with one another to lay down their arms and leave the sovereign in the exceptional position of retaining his. Now, this position of sovereign indivisibility must be ceaselessly deconstructed, but the power and necessity of its particular form of political association cannot merely be replaced by systems of sociological networks. The sociological networks of cause, effect, and agency traced by ANT are visible as such because of the coherent field of representation established by sovereign power and by

the replacement of the war of all against all with a generalized struggle for social power.

Given this relation between an externalist concept of cause and effect and sovereignty, it is no coincidence that, in Kramnick's description, the chain of causality goes from atom to king, and from king to God, the heavenly and earthly sovereigns.⁴⁰ It is thus essential for Hobbes's externalist theory of action that the actions of the subject are entirely coordinated with an all-encompassing political power. Indeed, this is perhaps an inevitable result of subsuming the subject within a chain of mechanical causes. In this sense, it is no surprise that in Macpherson's discussion of deodand it is not only that things, more than subjects, can be held responsible for injuries but that the thing ultimately falls forfeit to the sovereign. What this means is that it is ultimately the sovereign, in his control of the entire field of materiality (and this includes both things and self-conscious subjects), who guarantees and underwrites the form of responsibility that is deodand. In order for this law to be enforced, to have the force of law, there must be one who is excepted from it (even if this is by being, as the sovereign is for Hobbes, the ultimate bearer of all injuries or harms). Ultimate responsibility lies with sovereign power, and as Harry Truman (the president, not the sheriff) intuitively understood, only a sovereign power can say that "the buck stops here."

In the Hobbesian system, however, the idea that the sovereign would hold the ultimate responsibility presents a clear problem. While it is the sovereign who is the ultimate cause of action, just as it is the sovereign who is the ultimate recipient of all harm, the responsibility of the sovereign is questionable. Hobbes repeatedly argues that the sovereign is not accountable to the laws. In this sense, it is possible that removing the liberal subject entirely from the field of responsibility thus risks that the ultimate, and only, site of responsibility is the position occupied by the sovereign. The stakes of this risk become apparent if we turn to Hobbes, and especially to his consideration of crime. For Hobbes, a crime (unlike a sin) is something that is visible to the civil law. A mere intention, unaccompanied by action, can thus not be a crime. However, this also means that "the Civill Law ceasing, Crimes cease" (202). As Hobbes put it, "There being no other Law remaining, but that of Nature, there is no place for Accusation" (202). In this situation, a man may be his own judge and listen to his

conscience, but there is no position from which anyone else can judge. Importantly, while this is the case for all people in the state of nature, it remains the case for the sovereign, who retains all the rights of the state of nature after the formation of civil society. Hobbes judges the opinion that “*the Sovereign Power, is subject to the Civill Lawes*” “repugnant to the nature of a Common-Wealth” (224). He argues that since the sovereign makes the laws, he cannot be subject to them, because this would “setteth the Lawes above the Sovereign [and] setteth also a Judge above him, and a Power to Punish him; which is to make a new Sovereign” (224). In this sense, the sovereign remains in a zone of (ir)responsibility in which he is both the one upon whom all responsibility devolves and the one whose actions are unaccountable by any law other than that of his own conscience. It is, I suggest, exactly this kind of (ir)responsibility that is at issue in the political technology of the drone. This political technology combines, in a seamless way, a diffusion of responsibility among a network of human and nonhuman agents and an ultimate recursion of responsibility to the EOP, which is, in this instance, unaccountable even to Congress or the courts in its actions and decisions. It is this political technology that *Texts from Drone* represents so well.

HOBBS AMONG THE DRONES: ASYMMETRY AND ENMITY

In his book *War in the Age of Intelligent Machines*, written prior to the era of the Predator drone, Manuel DeLanda distinguishes between two forms of military organization. One, he argues, attempts to centralize decision making and maximize certainty at the top of the command chain. This removes responsibility from those further down the chain, but, DeLanda shows, can produce uncertainty throughout the network due to the difficulty and time lag involved in receiving and processing information. The other form of organization distributes and disperses the uncertainty that is unavoidable in any war situation throughout the command chain, giving local responsibility to particular units. DeLanda argues that the military’s development of technology leads it to use increases in computing power to centralize command processes and to take humans out of the loop. He further argues that the military’s dream is to have artificial intelligence systems

that would take decision making out of the hands of humans, even to the point that “target selection” would be performed by machines.⁴¹ Later writers, indeed, have argued that military commanders like drones because they can control every decision. There are stories of generals who, instead of delegating responsibility, insist on having drone feeds in their offices at all times. Chamayou argues that in the context of drone warfare, “instead of ‘man’ in general losing control to the ‘machine,’ here it is the lower ranking operators who lose their relative autonomy to the higher echelons of the hierarchy.”⁴² DeLanda’s context differs from ours in that he worries less about drone warfare than he does about nuclear warfare. He worries that the centralization of command will not adequately disperse uncertainty and that the network will self-destruct, leading to nuclear war. The problem here is a maximum of destruction, whereas drone warfare is about a continued low-level warfare. In the context of drones, then, the problem is different, involving a political threat as much as a military one. The centralization and concentration of responsibility means, paradoxically, a removal of accountability and responsibility all along the line. Rather than nuclear war, drone warfare risks the radical return of sovereign (ir)responsibility.

Chamayou makes a similar point when discussing the evacuation of subjective responsibility in the age of the drone. He argues that the question that has become obsessive in the postmodern, neoliberal world is, “where is the subject who holds power?” Chamayou sees a concentration of power at the top and an increased responsibility at the top, and this is in some ways a good description of the political technology of the drone. While on the one hand there is a diffuse kill chain in which it is difficult to decide who or what is responsible for the actions of a drone, on the other hand it is increasingly only generals or the president himself who gives the orders that authorize particular killings.

Indeed, one aspect of the political technology of drone warfare is particularly disturbing in this context. Activists and writers who critique the US policy of drone warfare are concerned to highlight the obscurity of the processes by which targets are selected and by which the relative successes of drone strikes are measured. They outline three separate but overlapping kill lists (prepared by the executive branch, the CIA, and the JSOC) on which individuals are placed who are subject to targeted assassination by drone. The president has the final say in weekly meetings about who may be

targeted. This process is already problematic because of the lack of review of who may end up on a list, to say nothing of the legal problems of carrying out assassinations in foreign territories. More worrying for those concerned about the problem of automation, however, is the use of signature strikes. These strikes are decided upon using algorithms based on surveillance data to identify targets through behavioral patterns rather than personal identity. This means that a pattern of behavior (which could include meetings or phone calls with those already on a watchlist) could get someone placed on a kill list even if neither government nor intelligence agencies know so much as their name. Moral agency is related entirely to external actions, and to no identity, consciousness, intention, or, in Locke's terms, "personality." People are not treated as self-conscious agents, but as mere bodies in motion. This method of determining targets means that the justice or relevance of this sovereign decision over life and death is not challengeable by any reason other than reason of state. The data is classified, and no one can defend someone who has no known identity outside that data.

This is one example of a fundamental asymmetry in the political technology of the drone. Between the subject who may be killed and the sovereign who decides on life and death there is so little symmetry that the one targeted for killing need not even have a name. This is part of the transformation of the concept of enmity that occurs in drone warfare. It is, for example, a complete departure from traditional warfare, in which, although the enemy may never be named personally, they always represent a nation or institution. In this sense, the celebration of the tombs of unknown soldiers, which Benedict Anderson has linked to the rise of the nation-state, gives the name of the nation to the soldier who has lost his own.⁴³ In drone warfare, a name or personal identity is replaced with a behavioral algorithm, leaving an unnamed enemy vulnerable to all the violence of a representative sovereign power.

The enemy in drone warfare, then, is nameless but distinct from the anonymous soldier who comes to represent his nation. This enemy is also distinct from the kind of enemy associated with war in the tradition of European public law, who always maintains some symmetry with his antagonist. One of the texts that establishes most clearly the status of the enemy in this tradition is Carl Schmitt's *Concept of the Political*, and Schmitt indeed is committed to the idea that the limitation of

warfare within Europe by the *jus publicum Europaeum* was one of the great achievements of the Enlightenment period. As Rodolphe Gasché writes, for Schmitt “the clear distinction between friend and enemy in the *jus publicum Europaeum* . . . is instrumental to containing war.”⁴⁴ Schmitt argues that the decision about who constitutes the enemy is the specifically political act. This act both defines the enemy as an existential threat to the political community and defines the political community against this external enemy. Precisely because it is constituted by a political act or decision, the enemy, for Schmitt, is contingent and not absolute. In contrast to the foe, the enemy is not an enemy for any transcendental or moral reason, but by the sovereign declaration that it is a specific threat to a political group.

This Schmittian concept of enmity fits very neatly into the tradition of European public law, in which sovereign states declare war against other states; despite their enmity toward one another, they nevertheless recognize one another’s right to exist and thus grant some sort of symmetry to the relation of enmity. Importantly, this idea of enmity involves a limitation of hostility. Schmitt is very concerned, for instance, to insist on there being no possible war for the sake of humanity. To claim that one fights for humanity is only to make one’s enemy inhuman as an excuse to completely destroy him. War under such conditions, says Schmitt, makes the enemy “into a monster who must not only be defeated but also utterly destroyed. In other words, he is an enemy who no longer must be compelled to retreat within his borders only.”⁴⁵ For Schmitt, as David Bates has argued, states on the European continent “recognized one another’s right to exist,” and war between such states was “like a duel between individuals.”⁴⁶ As I discussed in the introduction, Ian Baucom has shown that even if, in European public law, there was an avoidance of creating an enemy who merely must be destroyed, this kind of enmity was the basis for the colonial wars of the Enlightenment period, which Schmitt himself characterized in *The Nomos of the Earth* as outside the legal and conventional norms of war. Even within the period in which European public law supposedly held sway, then, a more hyperbolic form of enmity existed. Any symmetry between European states was balanced against a fundamental asymmetry between Europe and the non-European world, which was the site of colonialist and imperialist expansion.

Drone warfare functions within this very asymmetry, and one of its characteristics is its refusal to limit or contain enmity. Drone warfare moves toward an absolute enmity by denying those it hunts the kind of telluric connection and intense political engagement that Schmitt wanted to grant even the partisan, a figure whose lack of affiliation with a nation-state and fighting tactics Schmitt saw as pushing beyond the boundaries of classical, limited enmity.⁴⁷ Because the enemy who is subject to drone strikes can be hunted and killed anywhere, regardless of the markings of territorial sovereignty, he can never be forced, as Schmitt's phrase puts it, "to retreat within his borders only." The enemy subject to drone strikes, like the war against him, knows no borders, and to a large extent the war follows the enemy. This is not to say that fighters for ISIS (the Islamic State of Iraq and Syria), the Taliban, or even Al-Qaeda may not have territorial goals or do not fight for control over territory they think of as home. However, unlike even the partisan, who for Schmitt retains some connection with the earth and a territorial goal, the enemy of the drone is not defined for Western powers by his relation to his own territory, but rather by his perceived threat to the territory of the United States. Neither moral reform nor retreat is possible for this enemy. As *Texts from Drone* shows in the meme about the NDAA, the only option for such an enemy is either indefinite detention or death. This is an enemy with whom friendship is impossible, foreclosed as a possibility beyond or before any political decision. Drone warfare, then, moves beyond the kind of limitation to war idealized in European public law. Because the enemy it confronts is made to seem absolute and not the result of a contingent political decision, war against that enemy becomes both spatially and temporally unlimited, just as sovereignty itself becomes more absolute in its claim to the right to kill. It is a war against an enemy who finds himself outside the potential of moral reform, subject to a violence that does not aim to direct the movement of bodies, but merely to disable them from movement.

Signature strikes, which target people based upon a pattern of behavior rather than knowledge of them as forensic or juridical individuals, have particularly disturbing consequences for the concept of enmity. The algorithm that determines what constitutes suspicious behavior is known only to those who control the drones and neither to those who are targeted by drones nor those in whose names drones kill. If we return to Hobbesian

moral philosophy, we can see that these enemies are no longer treated with even the potential for moral reform. This means that some fundamental principles of Hobbesian morality are inapplicable to those who live under drones. Whereas Hobbesian morality requires a certain and swift punishment, along with a clear visibility of any legal and moral obstacles designed to influence behavior, living under drones must feel like being targeted randomly.⁴⁸ One cannot predict precisely which behaviors make one subject to punishment. The political morality that pertains in places subject to drone warfare is fundamentally distinct from that which pertains in the kinds of civil society Hobbes describes. In the latter, the idea is to modify behavior to make subjects live in a certain way, with the threat of a power over life and death largely being exercised in a biopolitical way to “make live.” Those who prosecute drone warfare create something closer to what Achille Mbembe calls a “necropolitics.”⁴⁹ They do not attempt to modify behavior, to make those living under drones live as model, capitalist, global citizens. The idea is merely to eliminate those who pose a threat, to treat people as merely subject to the right the sovereign has to put them to death. Indeed, as the filmmaker Madiha Tahir has said, “There is no cause and effect with the drone.”⁵⁰ Attacks seem random, and there is no way to know how to avoid them. This is perhaps the starkest example of the asymmetry of drone warfare, as people are treated as less capable of moral action than rats in mazes, whose behavior can be altered by external effects. Incapable of ever becoming a friend, the enemy here is a body that must merely be killed. Another way to read this would be that drones police populations, not individuals, and that it is only the visible death of their neighbors (whose lives are only important insofar as their deaths provide a warning and an example) that can make those subject to drones alter their behavior. Either way, drones make dead.

More fundamentally, nearly all writers on drone warfare have commented on the asymmetry of this kind of violence in the sense that those who are victims have no chance or capability to fight back against their killers. This is, for those who have drones, warfare without risk.⁵¹ In his book *Governing from the Skies*, Thomas Hippler shows this to have been characteristic of air warfare, especially air warfare carried out in colonial territories, since the beginning of aviation history. He argues that those who are subject to this kind of “riskless” warfare are those who, in one

form or another, are not granted the basic status of human subject. Between these vulnerable bodies (which are not even subjects) and the drones and their masters is a complete gulf, an asymmetrical and nonreciprocal relation. Importantly, this asymmetry is also essential to a Hobbesian account of sovereignty. In a Hobbesian system subjects contract with one another, deciding together to lay down their arms and grant sovereignty to another. They do not contract with the sovereign, who does not give up any of his rights to violence. In this sense, the sovereign does not need to respond to (or take responsibility for) the claims of his subjects. As Derrida puts it, the sovereign (“if there is one”—a caveat present in all Derrida’s discussions of sovereignty) always has “the right not to respond, he has the right to the silence of that dissymmetry.”⁵² The sovereign never justifies his contract, nor does he make treaties with his subjects. In this sense, the sovereign is fundamentally irresponsive and irresponsible, and the political technology of the drone produces and relies upon precisely this kind of sovereignty.

What is interesting about Derrida’s account of sovereignty is that he claims that despite its power, despite what he calls its onto-theological, godlike character, it is also dumb. This is meant both in the sense that it is unable to speak and in the sense that it is stupid; as Derrida puts it, the sovereign “looks a bit stupid [*bête*], he looks like the beast.”⁵³ The sovereign is sovereign only insofar as he does not speak, because when he speaks (which he must) he enters the economy of language. As Derrida puts it, language “always introduces a sharing that universalizes. As soon as I speak to the other, I submit to the law of reason(s), I share a universalizable medium, I divide my authority.”⁵⁴ Once the sovereign enters into the economy of language (which he must, which he always already has done) his indivisibility is subject to interpretation, difference, challenge. In a word, his indivisibility is divided. As Derrida points out, the sovereign is thus powerful and indivisible, sovereign only insofar as he does not engage in a world he nevertheless must engage in. Precisely because he must engage in the world, in language, the sovereign is subject to deconstruction. This is the autoimmunity characteristic of any sovereignty, and this comes out in *Texts from Drone*. In the memes D-Ron’s masters seem helpless and powerless, even as the drone does their bidding. The drone goes beyond their orders, getting involved in accidents and creating collateral damage that seems structurally

unavoidable. The joke in these memes, which is fundamentally to personify the drone and give it language and agency, shows a breakdown in the chain of command in which the clarity of sovereign intention is diverted. The dark underside of this joke, however, is that what is really lost in drone warfare is not sovereign intention (it is not as if the problem of drone warfare is that it is a good idea badly carried out) but sovereign responsibility. The problem is that the system of drone warfare, its political technology, is to allow the sovereign not to respond, not to take responsibility for its actions.

Because of this irresponsibility, drone warfare is a hyperbolic instance of the violence and asymmetry of sovereignty. Drone warfare destroys or unhitches the link between force and right, and this is why it is precisely in territories with which the United States is not technically at war and that are not occupied by boots on the ground, such as Pakistan and Yemen, that the violence of drones is at its most (ir)responsible. Where sovereignty has no right, where any action it takes demonstrates precisely its illegitimacy, what is left is only its violence. There is no right and thus no accountability. There is only the asymmetrical confrontation between a life devoid of (because deprived of) subjectivity and the violence of a sovereignty that kills others right at the point that it undoes its own legitimacy, which is to say its very claim to be sovereign. What is interesting about drone warfare with respect to sovereignty and moral philosophy, then, is not that it involves a network of actors that includes the human and the nonhuman. It is that the very peculiar relation between force and right that is characteristic of sovereignty is broken right at the point of a Hellfire missile. The very act that claims the right over life and death, the force of law, unhitches that force from right. This is a violence that does not attempt to constitute a new order, and if it attempts to preserve the order of the sovereign power of Western states, it does so by constituting an enemy who can never belong to it, who, like Locke's wild beasts (but unlike Cecil the lion), is incapable of friendship.

DRONES FROM OBAMA TO TRUMP

Drone use will be the lasting legacy of the Obama presidency. However, while this is certainly Obama's signature contribution to foreign policy,

drone policy has not stood still. Until his very public assassination by drone of the Iranian general Qasem Soleimani, drone use under Donald Trump, while apparently becoming more widespread, was considerably less visible and less transparent than it was even under Obama.⁵⁵ Furthermore, Trump revoked an Obama-era rule that required the government to issue public reports on the number of civilian casualties from US airstrikes outside official warzones. These strikes, often in places like Yemen and the north of Pakistan, were largely performed by the CIA. The *New York Times* reported that the CIA program broadened under Trump and that at the same time the public accountability for these actions was reduced almost to zero.⁵⁶ Trump also lowered the threshold for who might be targeted by drone strikes. Now not only leaders but also “foot soldiers” are subject to assassination. Interestingly, one of the main policy changes made by Trump was to give a freer rein to generals and other field commanders to carry out drone strikes, without the kind of approval from the White House administration previously required under Obama. On the one hand, this seemed to remove the locus of responsibility for the drone program from the EOP, locating it more firmly within a military structure. On the other hand, however, this merely confirms the fundamental (ir)responsibility of the EOP, as drone strikes outside officially sanctioned battlefields can now proceed even without the knowledge of the White House. Comparing Obama’s liberal presidency with Trump’s authoritarian one throws up some surprising results with regard to drone warfare, with the liberal Obama more firmly in control of his acts of violence than the authoritarian Trump. It is from the perspective of the kind of moral philosophy I have been discussing here, however, that these results can be made to seem less surprising.

In an article written for the *Atlantic* in 2018, Daniel J. Rosenthal and Loren DeJonge Schulman, who identify themselves as having helped develop the bureaucratic guidelines governing Obama’s drone program, lament Trump’s changes to drone policy. They begin with the hyperbolic (though perhaps true) statement that while Trump “dramatically expanded” his use of drones, “you—and perhaps he—would never know it.”⁵⁷ This focus on the irresponsibility of the president for what was going on under his watch sets the moral tone of this article. Rosenthal and Schulman praise Obama both for his “evolving” thought about drones, in which he began to make some of their use more transparent to the

public, and for the fact that while he “operationally expanded” the use of drones, he “bureaucratically constrained” them. This bureaucratic constraint amounted, as the authors describe it, to the development of internal rules that governed where and when drones could strike and whom they could target. Importantly, these rules were developed entirely within the executive branch of government and involved no oversight from either the public or Congress. In effect, they amounted to the EOP policing itself. Some of this becomes clear when the authors discuss their own role in drone warfare. They were part of a team that came up with “policy frameworks” that after a few years Obama “eventually shared,” along with “limited strike data,” with the public. Of course, before this information was shared, and even to a large extent afterward, the EOP was not accountable to anyone either for the content of these policies or for how they were followed. That is why the authors of this article say they “took pride in fastidious adherence to these administrative rules.” Only moral pride, a luxury available neither to those who are victims of drone strikes nor to those in whose name the drones kill, restrains the drone’s deadly violence. In a sense, what is characteristic of Obama’s liberal drone policy is precisely this moral fastidiousness that attempts to convert a problem of political technology into one of moral rigor. Indeed, the authors of this piece boast about the “healthy level of rigor” the guidelines brought “to strike decisions.” The boast here seems to be that unlike the Trump administration, Obama had moral adults in the room for all strike decisions, that all assassinations were contemplated with a serious morality. This replacement of a democratic politics with a kind of personal morality in which one can take pride is paradigmatically liberal and, far from being a constraint on drone use, is precisely what allows its political technology to work. A fastidious liberal morality is in fact part of the political technology of the drone, turning what used to be considered political assassinations into acts of moral calculus.

What the political technology of the drone is based upon, then, is a responsibility, and a subject of responsibility, that is no longer locatable. There is not a central, coherent sovereign power who is accountable and responsible for the entire network of military technology. This is the case either because, as was reportedly the case under Trump, military commanders and CIA chiefs have the authority to work without specific orders

or oversight from the EOP or because it is only a fastidious but politically unaccountable and thus irresponsible morality that holds drone killings in check. It is also because the kill chain is so diffuse and because the actions performed by a sovereign power are performed in a zone without symmetry and thus without any reciprocal responsibility. What we are left with instead is a radical evisceration of sovereignty and responsibility even as it is centralized and focused. This is because neither sovereigns nor machines can be held responsible. The sovereign, the one who decides on the exceptional extrajudicial killings, exists in a zone of (ir)responsibility because he exists beyond right in a zone of mere power. This is because the violence without responsibility (in the sense of accountability) characteristic of the practice of drone warfare undoes all relation between right or legitimacy and sovereign power. We have instead a kill chain that includes human and nonhuman actors, which simply diffuses and defuses responsibility.

The nightmare of drone warfare is not the self-aware machine that would kill autonomously and beyond human orders. It is instead that we have created a political technology in which violence exists beyond all concepts of responsibility and agency. The liberal concepts of responsibility are inadequate to deal with this problem, and more determinist accounts of moral agency devolve more power onto the (ir)responsible sovereign. In other words, networked theories of responsibility, however they may free us from liberal ideas of subjectivity, do nothing to limit sovereignty and in fact merely intensify its characteristic asymmetry and (ir)responsibility. If we can accept that it is perhaps futile to address the problem of drone assassination with traditional concepts of agency, what is difficult to deny is that the abandonment of subjectivity to a mechanical system threatens to expose it to the violence of sovereign power, by making it either a victim or an agent of sovereign violence. The idea of mechanical subjectivity may free us from the straitjacket of the autonomous liberal individual only to expose us, without recourse, to the joyful exercise of sovereign violence.